

Prevention of Sexual Harassment Policy –
Global
Version 1.6

Configuration Identifier- **P-HR16**

Document Status:
Active

Reviews Conducted:
Lead

Document Security:
Internal

Document Reference:
NammaHive

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Amendment History

Sl. No.	Author(S) Name	Version	Date	Change Description
1.	Brijesh S, Chief People Officer	1.0	1-Nov-2018	Baseline
2.	SASHA, POSH Partner	1.1	1-Mar-2019	Policy Revised
3.	Archana Anirudh, Senior Executive-HRBP	1.2	1-Jun-2022	Updated IC members' details, added official email id for POSH, added Workplace definition and remote working scenarios, exclusion, third party harassment, conciliation during remote working and Annual Report of the IC.
4.	Archana Anirudh Lead-HR	1.3	1-Sep-2023	Reviewed Policy and added the details of the newly appointed external member and internal members.
5.	Archana Anirudh, Lead-HR	1.4	1-May-2024	Updated the change in the IC committee in THBS.
6.	Archana Anirudh Lead-HR	1.5	23-June-2025	Updated the change in the IC committee in THBS.
7.	Archana Anirudh Lead-HR	1.6	26-Sep-2025	Updated the change in the IC committee and inclusion of She-Box.

Distribution List

Sl. No.	Reviewed and Approved by Name and Designation	Version	Date Issued	Remarks
1	Management	1.0	01/11/2018	Reviewed
2	Shivdayal Charan - HRD Manager	1.1	01/03/2019	Reviewed
3	Shivdayal Charan - HRD Manager	1.2	1/06/2022	Reviewed
4	Shivdayal Charan - HRD Manager	1.3	1/09/2023	Reviewed
5	Aparna Chetan – HR Head	1.4	1/05/2024	Reviewed
6	Aparna Chetan – HR Head	1.5	23/06/2025	Reviewed
7	Aparna Chetan – HR Head	1.6	26/09/2025	Reviewed

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1. Introduction

1.1 Purpose

The purpose of the POSH policy is to carry out duties as a responsible employer by

- *Prohibiting sexual harassment*
- *Preventing sexual harassment by taking practical and reasonable steps*
- *Handling the complaints of sexual harassment basis, the rule laid down as per the Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013*
- *Providing necessary support and mechanism to the Aggrieved Person(s)*

1.2 Scope

This policy is applicable to:

- *All employees irrespective of the nature of their employment with THBS, including trainees, interns and apprentices.*
- *All suppliers and clients of THBS*
- *All third-party employees associated with THBS. In the context of this policy, an employee means, a person employed with THBS for any work, in any capacity, permanent, contractual, direct contract, third party contract, part-time, full-time employment for gain or not, or working on a voluntary basis or otherwise, whether the terms of employment are express or implied.*

Note:

- *If any clause in this policy comes in contravention of any rule of the land, in such circumstance, the rule of the land will prevail.*
- *This policy will not prevent an employee from taking legal recourse.*

1.3 Overview

Sexual harassment is prohibited in THBS.

THBS promotes a working environment where associates of different sexes work to complement each other as equals. THBS will take practical and reasonable steps to prevent sexual harassment via training, awareness programs and other initiatives as THBS deems fit or as may be reasonably required by law. Complaint on sexual harassment will be addressed by giving due regard to sensitivity, confidentiality, privacy and reputation by following discretion and due process and adhering to the principles of natural justice.

1.4 Acronym, Abbreviation and Description

Acronym	Description
THIS	Torry Harris Integration Solutions
THBS	Torry Harris Business Solutions
POSH	Prevention of Sexual Harassment at workplace
IC	Internal Committee
NGO	Non-Governmental Organization

2. Definitions

Key words	Definition
Aggrieved Person	In relation to a work place, a person of any age, whether an employee or not, who alleges to have been subjected to any act of sexual harassment.
Complainant	An aggrieved person who makes a complaint alleging sexual harassment.
Policy	For the purposes of this document, Policy will mean this THBS Global Policy on Prevention of Sexual Harassment.
Respondent	The person against whom the complaint of sexual harassment is made.
Retaliation or Victimization	Any adverse employment action against an employee due to lodging of the complaint of sexual harassment or participation in the Organization's inquiry of complaint of sexual harassment.
Sexual Harassment	Any one or more of the following unwelcoming behaviours/acts, whether implied or direct, namely: 1. Physical contact and advances including touching, stalking, sounds having explicit and or/ implicit sexual connotations, overtones or molestation. 2. A demand or request for sexual favours 3. Sexually coloured remarks 4. Showing pornography 5. Any other unwelcome physical, verbal or non-verbal conduct of sexual nature including, but not limited to: • Display of pictures, signs etc., with sexual nature, connotation, over tones in the work area and the work-related areas. • Verbal or non-verbal communications offending individual's sensibilities and affect one's performance and has sexual connotations or overtone. • Teasing, innuendos and taunts, physical confinement and or touching against ones will and likely to intrude upon one's privacy. The following circumstances, among other circumstances, if it occurs or is present in relation or to connected with any act or behaviour of sexual harassment may amount to sexual harassment. • Humiliating treatment likely to affect health or safety. • Implied or explicit threat or detrimental treatment in the employment or threat about future employment status.

	Implied or explicit promise of preferential treatment in the employment.
Workplace	“Workplace” means and includes the offices of the Organization as well as the premises of other third parties, vendors and associates of the Organization where the Employees of the Organization are required to perform work or that are visited by the Employees of the Organization arising out of or during the course of employment and includes transportation provided by the Organization for undertaking any journey, in connection with the business of the Organization.
Employer	(a) Director of Torry Harris Business Solutions and (b) any person(s) or board or committee responsible for the formulation and administration of policies that enables management, supervision and control of the Workplace.
Internal Committee (IC)	In pursuance with The Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act of 2013 and its Rules (“Act”), an Internal Committee has been constituted to redress complaints of sexual harassment at the workplace. The IC is the sole inquiring authority into all complaints of sexual harassment at the workplace and a recommendatory body for disciplinary actions thereof based on the findings of the inquiries.
Member/s	Member/s means a member/s of the Internal Committee

District Officer	District Officer means an officer notified under Section 5 of the Act
Local Committee	Local Committee or LC means a committee notified by the State Government for the purpose of dealing with matters in relation to sexual harassment in each and every district.
SHe-Box (Sexual Harassment electronic Box)	An online portal of the Government of India for receiving complaints relating to sexual harassment at the workplace. Where THBS is registered on SHe-Box, any complaint routed to THBS via SHe-Box will be acknowledged, recorded, and processed by the Internal Committee (IC) in accordance with this Policy and the POSH Act/Rules.

3. Provisions

The provisions of the policy are as below:

1. Circumstances of Sexual harassment

- The Complainant as well as the Respondent can be any of the sexes.
- The Respondent can be the Complainant's supervisor, manager, contractor, agent, customer, client or any one from any other department or any employee of THBS.
- The Aggrieved Person need not be the one harassed but could be anyone affected by the offensive conduct.
- The act of Sexual Harassment must be related to employment or work, which includes any place either at work or outside the work. Eg: Hotels, client locations, guest house, transit quarters, travel etc. as described in the Definitions section of this Policy. Additionally, acts that are committed during Work from Home or remote arrangements that are authorised and/ or mandated by the Organization would fall within the ambit of sexual harassment at the workplace. "Work From Home" here refers to a situation wherein Employees are working from a remote location which is not the Organization's physical premises, client/ vendor premises, or any other location within the ambit of Clause 4(k) of this policy. Actions which take place in personal capacity will not be

considered workplace concerns unless there is connection with the workplace by way of creation of a hostile work environment for the aggrieved person.

- It may occur by way of act or omission by a third party or outsider while the Aggrieved Person was at the Workplace or doing work related activity and on behalf of THBS.
2. Exclusion: It is to be noted that this Policy does not apply when the Complainant is performing work outside of the Workplace, of their own accord and for personal reasons, and without the authorization of the Organization.

4. Third Party Harassment

- Third party harassment means Sexual Harassment perpetrated by visitors, patrons, vendors, independent contractors, auditors, consultants, and others with whom the Employees have come in contact, directly or indirectly, because of the Organization having a relationship/business relationship with them.
- Where the Sexual Harassment at the Workplace occurs as a result of an act or omission by any third party, the Organization shall take all steps necessary and reasonable to assist the affected Employee in terms of support and preventive action.

5. Prevention of sexual harassment

- Everyone to whom this policy applies have an obligation to refrain in indulging in any activity leading to or creating an opportunity for sexual harassment.
- THBS will create awareness on prevention of sexual harassment through various internal communication channels like internal mailers, posters, notices and training sessions.

6. Redressal System

6.1 Internal Committee

A committee to redress complaints on sexual harassment will be constituted at THBS, called Internal Committee. The composition of the IC members will be as follows.

- The Chairperson (Presiding Officer) who convenes and chairs the hearings of the committee. The Presiding Officer shall be a woman employed at a senior level at the Workplace.
- Not less than two members from the community of employees, preferably who are committed to the cause of women or having legal knowledge.
- A third-party representative from an NGO or other body, who is familiar with the issue of sexual harassment with at least 5 years of experience in the field of social work towards empowerment of women and in particular in addressing workplace sexual harassment; or someone who is familiar with labour, service, civil or criminal law.
- To the extent allowed by law, it is required that not less than half of the IC members shall be women.
- The term of the IC members shall not exceed 3 years, or any such terms as prescribed under applicable law.

- A minimum of 3 Members of the IC including the Presiding Officer are to be present for conducting the inquiry.
- For the purpose of making an inquiry, the IC shall have the same powers as are vested in a civil court under the Code of Civil Procedure, 1908 when trying a suit in respect of the following matters, namely:
 - summoning and enforcing the attendance of any person and examining him on oath;
 - requiring the discovery and production of documents; and
 - any other matter as may be prescribed.

6.2 Responsibilities of IC

- Ensure implementation of this policy across the organization in letter and spirit.
- Operate as an autonomous authority, such that there is no scope of allegations of bias or favouritism, to receive and inquire on complaints relating to Sexual harassment.
- Monitor SHe-Box for any complaints routed to THBS and ensure timely acknowledgement and processing.
- Maintain a register capturing all complaints, including any received via SHe-Box, with due confidentiality.
- To take immediate and appropriate corrective actions to end or to prevent any further harassment and provide interim relief to the Aggrieved Person.
- If the Respondent is found guilty after inquiry process, then, recommend appropriate disciplinary action ranging from reprimand to dismissal from the services. The corrective action or remedial measure should commensurate with the severity and persistence of the misconduct.
- Follow up inquiries to ensure harassment has not resumed or the Complainant / Aggrieved Person is not being victimized.
- To maintain complete confidentiality of the process. Disclosure of details or breach of the confidentiality factor with persons not directly related to the complaint without good cause shall result in disciplinary action against the concerned committee member.
- Respond to complaints of retaliatory nature and take appropriate remedial measures.
- Maintain records at the Organization level, undertake appropriate analysis, and appraise the management on the specifics on a need-based basis.
- Submit Organizational level reports for statutory compliance to the relevant Government authorities.
- To take preventive action to arrest development of hostile/ offensive work environment.
- Create orientation and training material, guidelines, ongoing updates on legislations, and any other informative act that would bring in and create awareness on sexual harassment.

6.3 Redressal of Sexual Harassment - Procedure for Inquiry

- Any Employee may make a complaint of Sexual Harassment at Workplace to the IC of the particular location within a period of three (3) months, or within such time period as is allowed under the local laws from the date of the incident.
- An employee can submit a complaint by emailing POSH@thbs.com or by providing a written submission to the IC Chairperson or any committee member. Complaints can

also be filed through the SHe-Box portal, which will route them directly to the IC for legal action. Whichever method is used, the complaint must include all supporting documents and a list of witnesses. For assistance, employees may contact the HR Helpdesk or their HRBP, who will immediately forward any POSH matter to the IC without conducting a separate inquiry.

- On receipt of the written complaint, the chairperson or any of the IC committee members will contact the Complainant within three (3) working days to understand the complaint and provide necessary support.
- The Chairperson will initiate a preliminary inquiry to assess the complaint. The genuineness of the complaint and the need for the formal inquiry, assessment on the same will be done by the IC
- After preliminary inquiry, based on facts, the chairperson can convene the meeting of IC and IC will meet with the Complainant explaining the policy and procedure to take the process forward.
- One copy of the complaint to be sent to Respondent, after receipt of the complaint, within seven (7) working days by the IC.
- Formal notification to the Respondent will be issued and a written explanation is sought within ten (10) working days of the issuance of the notification along with his/her list of documents and the list of witnesses.
- The Complainant can request for conciliation before commencement of an inquiry by the IC. No monetary settlement shall be made as a basis of conciliation. The IC shall then record the settlement so arrived and forward the same to the Employer to take action as specified in the recommendation. The IC shall provide the copies of the settlement to the Complainant and the Respondent. Where a settlement is arrived under conciliation, the IC shall conduct no further inquiry. Only in cases where the Complainant feels that it is a minor instance, which could be redressed through conciliation settlement, only in such cases, conciliation can be arrived at.
- While the inquiry/ conciliation proceedings shall ordinarily be conducted face-to-face with the parties and witnesses physically appearing for meetings at the office premises or any other location specified by the IC, in certain circumstances, the IC may allow the parties or witnesses to appear before it through videoconference or telephonic means. In such situations, the following guidelines shall also be observed:
 - a. Videoconference or telephonic proceedings shall be conducted only with the consent of the parties and witnesses involved.
 - b. The parties or witnesses who are required to depose before the IC shall be given adequate notice of 24 hours to ensure that they have enough time to set up the infrastructure required for taking a video-conference call.
 - c. The IC members/ parties/ witnesses to any inquiry or conciliation will be bound by the same standards of confidentiality as in the case of face-to-face proceedings. Audio or video recording of proceedings shall not be permitted. The IC member/ party/ witness appearing through virtual means must ensure that they are alone in the room when taking the call and that no part of information relating to the proceedings is made known to any unauthorized individual.
 - d. Parties/ witnesses will be sent a copy of the minutes of meetings or other relevant documentation (such as inquiry/ findings reports, evidence etc.) via email.

- e. Any and all communication (including but not limited to consent, confirmations, questions, comments, responses, statements) shall be made through email and/ or digital signatures.
- f. In the event that videoconference or telephonic proceedings are not feasible, the IC may postpone the same until physical meetings can be conducted.
- If so requested in writing, by the Complainant, pending completion of the Inquiry, the IC may recommend Employer to grant such interim relief:
 - transfer the Complainant or the Respondent to any other Workplace; or
 - grant leave up to three (3) months to the Complainant; or
 - grant such other relief to the Complainant as maybe prescribed in the Rules, including restraining the Respondent from reporting on the work performance of the Complainant or writing any confidential report and assign the same to another officer.
- The Employer shall implement such recommendations and send a report of such implementation to the IC.
- The formal inquiry will be conducted in accordance to the principles of natural justice.
- In case of breach of the terms of conciliation settlement then an inquiry shall also be held to look into such breach.
- IC shall give equal opportunity of being heard to both the parties.
- No legal practitioner is allowed to be brought by the parties to represent them in their case at any stage of the proceedings before the IC.
- If the IC arrives at a conclusion that the complaint was false and frivolous, necessary disciplinary action against the Complainant can be recommended by the IC.

6.4 Implementation of Disciplinary Action

- All inquiries for complaints on sexual harassment must be completed within ninety (90) days of commencement of the inquiry or as per the prevailing local laws governing the legal time lines at the time of the complaint, whichever is less.
- The disciplinary action recommended will have to be informed to both the parties in writing within ten (10) days from the completion of inquiry process.
- The action recommended by the IC should be implemented by the Head HR or any other competent person/ authority within sixty (60) days of the sharing of such recommendations.
- The report of such implementation shall be shared with the IC.
- Failure or refusal of any person/s to cooperate, disturb, or misguide the committee during the investigation may result in disciplinary action against such individuals.

6.5 Disciplinary Action

Any Disciplinary action taken will be within the purview of the THBS disciplinary process. The nature of the severity of the disciplinary action against the guilty depends on the seriousness of the offence committed. This could include, to the extent permitted by law, any one or more of the following and could range from but not be limited to:

- Written apology
- Training and counselling
- Issuance of warning letter

- Transfer to a different location/ department
- With-holding of promotion
- With-holding of pay rise or increments
- Monetary Compensation
- Dismissal or termination of the services.

6.6 Retaliation/ victimization:

Retaliation or victimization of any one in any form is not tolerated at THBS. Anyone engaging in acts of retaliation or victimization, directly or indirectly, may be subjected to appropriate disciplinary action.

- Retaliation/ victimization on any employee will be treated as a major misconduct.
- Retaliation/ victimization against those reporting sexual harassment is strictly prohibited.
- Anyone suspecting or experiencing retaliation or victimization should report to the concerned authorities.
- Retaliation/ victimization cases in conjunction of sexual harassment complaint are treated seriously even if the charges of sexual harassment are not proven.

6.7 Confidentiality

Individuals involved in the complaint process must refrain from divulging information relating to the complaint, process or procedures, identity of the parties involved, address or any other information relating to the complaint or its process. No information should be shared or published in the print, press public or social media. Breach of confidentiality clause would attract disciplinary action.

6.8 False complaints

If it's established or proved at any point in the due course of the inquiry process that the complaint was done with malicious intent, or it was a false complaint, or has produced any forged documents to establish the case, in such instances the IC may recommend to the Organization to take suitable action as per the disciplinary rules against the Complainant. Mere inability to substantiate a complaint or provide adequate proof need not attract action against the Complainant. Further, if there was a malicious intent on the part of the Complainant, the same needs to be established during the investigation and through the inquiry process.

6.9 Local Committee

- If the Employer is unable to recover the amount of compensation from the Respondent, Employer shall forward the Inquiry Report to the District Officer of the Local Committee.
- If the Complaint is against the Employer himself, Complaints can be filed before the District Officer of the Local Committee.

6.10 Filing of Police Complaints

- If the Complainant so desires, it is the duty of the Employer to assist the Complainant in filing the Complaint with the Police.
- If it is a grave offence, then Employer is duty-bound to report the matter to the Police.

- Where a legal recourse has been taken by a Complainant, in such instance, the Complainant should immediately inform the IC about such actions.

6.11 Appeal

The Complainant and the Respondent shall have the right to appeal to the Tribunal/Court of appropriate jurisdiction within ninety (90) days of the decision of the IC if they are not satisfied with the decision of the IC.

6.12 Timelines under the Act

SL.No	ACTION POINT	AUTHORITY/CONCERNED PERSON	TIME LIMIT (To the greatest extent permissible under local laws)
1	Complaint	Complaint to be lodged by aggrieved person Before Internal Committee	1. Within the period of three (3) months from the date of the incident, or 2. In case of series of incidents, within the period of three (3) months from the date of last incident.
2	Initiation of Inquiry Proceedings	By the Internal Committee, by sending the copy of complaint To the Respondent	Within the period of seven (7) working days of receipt of the complaint
3	Reply by the Respondent along with his list of documents, names and addresses of witnesses	To the Internal Committee	Within ten (10) working days from the day of receipt of the copy of complaint forwarded by IC.
4	Completion of Inquiry proceedings	By IC	Within three (3) months from the date of receipt of complaint
5	Submission of Inquiry Report and Findings along with Recommendations by IC	To the Employer	Within ten (10) working days of completion of Inquiry Proceedings by IC
6	Implementation of Recommendations made in the Inquiry Report of IC	By the Employer	Within sixty (60) days of the receipt of the Recommendations made in the Inquiry Report by IC
7	Appeal under clause 6.11 of the Policy	By the aggrieved person	Within a period of ninety (90) days of

			Recommendations by IC.
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7. Internal Committee Member details

Name	Designation	Contact Number	Email ID
Jyoti Mallya (Presiding Officer)	Head Finance	9980913154	jyoti_mallya@thbs.com
Srikar SS	Business Unit Head	7760976453	srikar_ss@thbs.com
Pramitha Baliga Bantwal	Director Delivery	9900580846	pramitha_shenoy@thbs.com
Sandeep CP	Director Delivery	8105678007	sandeep_chandragiri@thbs.com
Pooja Rao M	Deputy General Manager - HR	9480034017	pooja_rao@thbs.com
Kruthika R (External Member- SASHA)	External Member	9742147858	kruthikar@sashaindia.com

8. Annual Report of the IC

The IC shall in each calendar year prepare an annual report in the prescribed form and submit the same to the Employer and District Officer. The report shall encompass the following:

- Number of complaints received that year.
- Number of complaints disposed of during that year.
- Number of workshops or awareness programs conducted.
- Number of cases pending for more than 90 (ninety) days.
- Nature of action taken by the Employer.

Note :

Any matter not specifically covered under this policy shall be referred to the HR Manager for necessary advice. The interpretation of this policy rests exclusively with THBS. The decision of THBS shall be final and binding. THBS may amend / withdraw this policy at any time without assigning any reason; changes will be notified to all. For further clarifications, please get in touch with the HR team: hr@thbs.com